

A Notice of Cancellation may be sent to Rise Up Roofing and Construction, Inc. at the business address listed above or by email at accountant@riseuprac.com

HOME IMPROVEMENT CONTRACT

This contract (“Contract”) is between **Bryce Kirklen (the “Client”)** and **Rise Up Roofing and Construction, Inc. Edith Guerrero (the “Contractor”)**.

Project Address:	28663 Miller Road, Valley Center, CA
Contract Date:	The contract is signed and dated September 22, 2026.
Salesperson:	Marc Sarellano

You are entitled to a completely filled in copy of this agreement, signed by both you and the Contractor, before any work may be started.

AGREEMENT

A. Licensing:

The Contractor warrants that the Contractor currently holds a valid license, , under the laws of the State of California to perform the work. The work performed will be done so in compliance with all applicable local, state, or federal statutes and regulations.

B. Scope of Work & Project Specifications:

The Client is hiring the Contractor to do the following: **Complete Tile Roof Replacement**

a. Description of the Project and description of the significant materials to be used and equipment to be installed:

Rise Up Roofing & Construction, Inc. will complete the following roofing, preventative maintenance, exterior waterproofing, and interior repair work at the property:

Demolition

Tear off existing roof.

Installation

Install concrete tile roof system.

Jobsite Protection & Standards Note: Contractor warrants that all jobsite safety protocols, property protection tarps, landscape barriers, and magnetic sweeps of driveways and walkways are conducted daily. All roofing work adheres strictly to manufacturer specifications and California Building Standards Code (Title 24).

PROJECT TIMETABLE • CHANGE ORDERS • CONTRACT PRICING

B. APPROXIMATE START DATE

C. SUBSTANTIAL COMMENCEMENT

D. APPROXIMATE COMPLETION

e. Documents Incorporated Into This Agreement: (i) Exhibit A – Notice of Cancellation Form • (ii) Exhibit B – Extra Work or Change Order Form (if applicable).

f. Note About Extra Work and Change Orders: Extra Work and Change Orders become part of the contract once prepared in writing and signed by the parties prior to commencement of work covered by the new change order.

g. Form of Change Order: The order must describe the scope of extra work, cost added or subtracted, and effect on progress payments or completion date prior to commencement.

H. CONTRACT PRICE
\$31,000

J. DOWNPAYMENT
\$1,000

I. FINANCE CHARGE
N/A

THE DOWNPAYMENT MAY NOT EXCEED \$1,000 OR 10 PERCENT OF THE CONTRACT PRICE, WHICHEVER IS LESS.

STATUTORY PAYMENT LAW: IT IS AGAINST THE LAW FOR A CONTRACTOR TO COLLECT PAYMENT FOR WORK NOT YET COMPLETED, OR FOR MATERIALS NOT YET DELIVERED. HOWEVER, A CONTRACTOR MAY REQUIRE A DOWNPAYMENT.

k. Schedule of Progress Payments:

The schedule of progress payments must specifically describe each phase of work, including the type and amount of work or services scheduled to be supplied in each phase, along with the amount of each proposed progress payment. Client will pay Contractor upon completion of specified milestones:

Payment Milestone	Phase of Work / Materials Supplied	Amount
1	Deposit upon signing	\$1,000
2	Upon tear-off completion	\$15,000
3	Upon final inspection	\$15,000
Total Contract Price:		\$31,000

CLIENT INITIAL: I HAVE READ AND AGREE TO THE PAYMENT MILESTONES SCHEDULE

Payment Terms, Invoicing Provisions & Refund Policy:

Payment shall be made to the Contractor via cash, cashier's check, or money order. Invoices are due **UPON COMPLETION** of each milestone phase. Accounts unpaid after 4 business days incur a \$25.00 late fee or 1.5% monthly finance charge. Necessary extra materials expenses reimbursed within 2 days of receipt. Upon each payment, Contractor furnishes full and unconditional statutory lien releases pursuant to California Civil Code Sections 8400 & 8404.

Refund Policy: 1.6.2(a) No Refunds: Services completed and materials procured as described in this contract are not subject to refunds. The Client will not be reimbursed for services cancelled once work has begun. All sales are final upon substantial commencement.

CLIENT INITIAL: I HAVE READ AND UNDERSTOOD THE PAYMENT TERMS & REFUND POLICY

INSURANCE COVERAGE • MECHANICS LIEN WARNING • CSLB DISCLOSURE

C. Commercial General Liability Insurance:

Rise Up Roofing and Construction, Inc. carries commercial general liability, excess umbrella, and commercial vehicle insurance written by **PACIFIC UNITED INSURANCE SERVICES**. You may contact them directly at **(619) 274-8144** to request an official certificate of insurance.

D. Workers’ Compensation Insurance:

Rise Up Roofing and Construction, Inc. carries workers’ compensation insurance for all jobsite employees and roofing crew members written by **PACIFIC UNITED INSURANCE SERVICES**. You may call to verify active policy status.

E. MECHANICS LIEN WARNING:

Anyone who helps improve your property, but who is not paid, may record what is called a mechanics lien on your property. A mechanics lien is a claim, like a mortgage or home equity loan, made against your property and recorded with the county recorder. Even if you pay your contractor in full, unpaid subcontractors, suppliers, and laborers who helped to improve your property may record mechanics liens and sue you in court to foreclose the lien. If a court finds the lien is valid, you could be forced to pay twice or have a court officer sell your home to pay the lien. Liens can also affect your credit.

BE CAREFUL. The Preliminary Notice can be sent up to 20 days after the subcontractor starts work or the supplier provides material. This can be a big problem if you pay your contractor before you have received the Preliminary Notices. You will not get Preliminary Notices from your prime contractor or from laborers who work on your project. The law assumes that you already know they are improving your property.

PROTECT YOURSELF FROM LIENS. You can protect yourself from liens by getting a list from your contractor of all the subcontractors and material suppliers that work on your project. Find out from your contractor when these subcontractors started work and when these suppliers delivered goods or materials. Then wait 20 days, paying attention to the Preliminary Notices you receive.

PAY WITH JOINT CHECKS. One way to protect yourself is to pay with a joint check. When your contractor tells you it is time to pay for the work of a subcontractor or supplier who has provided you with a Preliminary Notice, write a joint check payable to both the contractor and the subcontractor or material supplier. Visit CSLB at www.cslb.ca.gov or call **800-321-CSLB (2752)**. **REMEMBER, IF YOU DO NOTHING, YOU RISK HAVING A LIEN PLACED ON YOUR HOME.**

CLIENT INITIAL: I HAVE READ AND UNDERSTOOD THE MECHANICS LIEN WARNING

F. Information about the Contractors’ State License Board (CSLB):

CSLB is the state consumer protection agency that licenses and regulates construction contractors. Contact CSLB for information about the licensed contractor you are considering, including information about disclosable complaints, disciplinary actions, and civil judgments that are reported to CSLB.

Use only licensed contractors. If you file a complaint against a licensed contractor within the legal deadline (usually four years), CSLB has authority to investigate the complaint. If you use an unlicensed contractor, CSLB may not be able to help you resolve your complaint. Your only remedy may be in civil court, and you may be liable for damages arising out of any injuries to the unlicensed contractor or the unlicensed contractor’s employees.

Visit Online: www.cslb.ca.gov

Call CSLB: 800-321-CSLB (2752)

Write CSLB: P.O. Box 26000, Sacramento, CA 95826

REPRESENTATIONS & GENERAL CONTRACT PROVISIONS

G. Representations & Authority

Authority to Sign: Each party warrants and represents that it has full authority to enter into and perform this Contract. **Client Review:** Client agrees to review work, be reasonably available, provide timely decisions, and ensure uninterrupted access to worksite water and electrical utilities.

H. General Provisions & Code Compliance

Signatures: Electronic and hardcopy signatures count as legal originals for all purposes. **Compliance with Laws:** Contractor warrants all work complies with California Building Standards Code (Title 24) and local ordinances. **Severability:** Unenforceability of any term shall not impair remainder.

CONTRACT PROVISIONS • EXECUTION OF AGREEMENT

I. Term & Termination

This contract ends upon final completion and payment. If terminated earlier per contract terms, Client is responsible for paying for all work completed and material expenses incurred up to that date.

J. Performance & Payment Bond

The Client has the legal right to require the Contractor to have a performance and payment bond, the expense of which may be borne by the Client as provided by California law.

The Parties hereto agree to the foregoing terms, specifications, and conditions as evidenced by their signatures below.

CONTRACTOR AUTHORIZED SIGNATURE:

Edith Guerrero

Rise Up Roofing and Construction, Inc.
By: Edith Guerrero • Title: Project Manager
License: B/C39/C46
Date: September 22, 2026

CLIENT SIGNATURE:

Bryce Kirklen (Signature of Client)
Project: 28663 Miller Road, Valley Center, CA
Date: _____

RIGHT TO CANCEL ADDENDUM

Three-Day Right to Cancel Notice Acknowledgement

The law requires that the contractor give you a notice explaining your right to cancel. Initial the checkbox if the contractor has given you a “Notice of the Three-day Right to Cancel”.

CLIENT INITIAL: I ACKNOWLEDGE RECEIPT OF THE THREE-DAY RIGHT TO CANCEL NOTICE

Five-Day Right to Cancel (For Senior Citizens Aged 65 and Older)

California Civil Code § 1689.6(a)(2) grants senior citizens aged 65 and older five business days to cancel this contract. Initial the checkbox if the contractor has given you a “Notice of the Five-day Right to Cancel”.

CLIENT INITIAL: I ACKNOWLEDGE RECEIPT OF THE FIVE-DAY RIGHT TO CANCEL NOTICE (IF APPLICABLE)

Contractor Registration: Licensed & bonded pursuant to CA Contractors' State License Law. Official Seal: Rise Up Roofing & Construction, Inc. (CA #1096492)

You are entitled to a completely filled in copy of this agreement, signed by both you and the Contractor, before any work may be started.

Notice of the Three-day Right to Cancel

CALIFORNIA CIVIL CODE § 1689.7 STATUTORY NOTICE

I. Statutory Three-Day Cancellation Rights:

The Client has the right to cancel this contract within three business days. You may cancel by e-mailing, mailing, faxing, or delivering a written notice to the Contractor at the Contractor’s place of business by midnight of the third business day after you receive a signed and dated copy of the contract that includes this notice. Include your name, your address, and the date you received the signed copy of the contract and this notice.

If you cancel, the contractor must return to you anything you paid within 10 days of receiving the notice of cancellation. For your part, you must make available to the contractor at your residence, in substantially as good condition as you received them, goods delivered to you under this contract or sale. Or you may, if you wish, comply with the contractor’s instructions on how to return the goods at the contractor’s expense and risk.

If you do make the goods available to the contractor and the contractor does not pick them up within 20 days of the date of your notice of cancellation, you may keep them without any further obligation. If you fail to make the goods available to the contractor, or if you agree to return the goods to the contractor and fail to do so, then you remain liable for performance of all obligations under the contract.

Date of Notice:	September 22, 2026	Signature of Client:	
Printed Name:	Bryce Kirklen	Project Address:	28663 Miller Road, Valley Center, CA

& DETACH HERE AND DELIVER TO CANCEL TRANSACTION &

EXHIBIT A • NOTICE OF CANCELLATION (THREE DAYS)

Date of original contract or transaction: September 22, 2026

You may cancel this transaction, without any penalty or obligation, within three business days from the above date. If you cancel, any property traded in, any payments made by you under the contract or sale, and any negotiable instrument executed by you will be returned within 10 days following receipt by the seller of your cancellation notice, and any security interest arising out of the transaction will be canceled.

To cancel this transaction, mail or deliver a signed and dated copy of this cancellation notice, or send an email to **Rise Up Roofing and Construction, Inc.**, 2182 S El Camino Real #202, Oceanside, CA 92054, email **accountant@riseuprac.com**, not later than midnight of the third business day after signing.

I HEREBY CANCEL THIS TRANSACTION.

(Enter Date of Cancellation):

Signature of Client:

Printed Name & Phone:

Property Address:

28663 Miller Road, Valley Center, CA

Delivery Method:

☐ Delivered In Person ☐ Certified Mail ☐ Email to accountant@riseuprac.com

Contractor Acknowledgment of Receipt: Signature:	Date Received:

Notice of the Five-day Right to Cancel

(For Senior Citizens Aged 65 and Older • California Civil Code § 1689.6(a)(2))

I. Five-Day Right to Cancel (for senior citizens aged 65+):

The Client has the right to cancel this contract within five business days. You may cancel by e-mailing, mailing, faxing, or delivering a written notice to the Contractor at the Contractor’s place of business by midnight of the fifth business day after you received a signed and dated copy of the contract that includes this notice. Include your name, your address, and the date you received the signed copy of the contract and this notice.

If you cancel, the contractor must return to you anything you paid within 10 days of receiving the notice of cancellation. For your part, you must make available to the contractor at your residence, in substantially as good condition as you received them, goods delivered to you under this contract or sale. Or you may, if you wish, comply with the contractor’s instructions on how to return the goods at the contractor’s expense and risk.

If you do make the goods available to the contractor and the contractor does not pick them up within 20 days of the date of your notice of cancellation, you may keep them without any further obligation. If you fail to make the goods available to the contractor, or if you agree to return the goods to the contractor and fail to do so, then you remain liable for performance of all obligations under the contract.

Date of Notice:	September 22, 2026	Signature of Client:	
Printed Name:	Bryce Kirklen	Project Address:	28663 Miller Road, Valley Center, CA

✂ DETACH HERE AND DELIVER TO CANCEL (SENIOR CITIZENS 65+) ✂

EXHIBIT A (2) • NOTICE OF CANCELLATION (FIVE DAYS)

Date of original contract or transaction: September 22, 2026

You may cancel this transaction, without any penalty or obligation, within five business days from the above date. If you cancel, any payments made by you under the contract or sale, and any negotiable instrument executed by you will be returned within 10 days following receipt by the seller of your cancellation notice, and any security interest arising out of the transaction will be canceled.

To cancel this transaction, mail or deliver a signed and dated copy of this cancellation notice, or send an email to **Rise Up Roofing and Construction, Inc.**, 2182 S El Camino Real #202, Oceanside, CA 92054, email **accountant@riseuprac.com**, not later than midnight of the fifth business day after signing.

I HEREBY CANCEL THIS TRANSACTION.

(Enter Date of Cancellation):

Signature of Client:

Printed Name & Phone:

Property Address:

28663 Miller Road, Valley Center, CA

Delivery Method:

☐ Delivered In Person

☐ Certified Mail

☐ Email to accountant@riseuprac.com

Contractor Acknowledgment of Receipt: Signature:	Date Received: